

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 28, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, MAY 28, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, MAY 27, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0085912 CREDITORS ADJUSTMENT BUREAU v. D&L SIDING

Motion to be Relieved as Counsel

The motion to be relieved as counsel for defendant D&L Siding, Inc. by ElGuindy, Meyer & Koegel, APC is granted, effective upon the filing of proof of service of the signed order after hearing on the client, D&L Siding, Inc. (Code Civ. Proc. § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)

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2. M-CV-0090708 TIERNAN, WILLIAM v. KEVIE, RICHARD

Defendants' Motion to Vacate and Set Aside Default Judgment Based on Extrinsic Fraud, and Equitable Relief

Defendant moves the court to set aside the judgment entered against him pursuant to Code of Civil Procedure section 473 and the court's equitable powers.

The court initially notes no default judgment was entered against defendant.

Nonetheless, the court is without jurisdiction to hear the motion after the issuance of the remittitur. (*People v. Dutra* (2006) 145 Cal.App.4th 1359, 1366.)

Even assuming arguendo the court had jurisdiction to hear appellant's motion—which it does not—appellant's motion is untimely pursuant to Code of Civil Procedure section 473, subdivision (b) and there is insufficient evidence that the judgment was void for relief pursuant to Code of Civil Procedure section 473, subdivision (d). The court also observes appellant's arguments about title to the real property goes beyond the scope of unlawful detainer proceedings. (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385.)

Accordingly, defendant's motion is denied.

3. M-CV-0096410 LHE WOODCREEK WEST v. TORRANCE, DEBORAH

Defendants' Motion to Set Aside Default

Defendants moves to set aside the default entered against them on April 8, 2026.

On May 5, 2026, the court granted defendant's ex parte application for stay pending the hearing on her motion to set aside default.

Defendants move pursuant to Code of Civil Procedure section 657. However, this statute provides relief for seeking a new trial. There was no trial in this matter so this section is inapplicable.

The court also observes that Code of Civil Procedure section 473, subdivision (b) relief is unavailable. The statute dictates that an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc., § 473, subd. (b).)

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Here, defendants' motion is not accompanied by a copy of the answer or other responsive pleading.

Nonetheless, the court, on its own motion, sets aside the default entered against defendants on April 8, 2026, because there is insufficient evidence that plaintiffs served the court's order denying defendants' motion to quash such that defendants time to plead had not expired. (Code Civ. Proc., § 418.10, subds. (b)–(c).)

Defendants shall file a responsive pleading on or before **June 4, 2026**.

4. S-CV-0049068 VAZQUEZ, GEOVANNI v. CALCARE

Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This timeline is extended by 2 court days where, as here, service is accomplished through e-mail. (*Id.* at § 1010.6, subd. (a)(3)(B).)

Here, the deadline to file and serve plaintiff's motion by e-mail was May 1, 2026. However, plaintiff filed and served their motion by e-mail on May 8, 2026, which renders it untimely. Accordingly, plaintiff's motion is denied without prejudice.

5. S-CV-0052034 ORTIZ, MICHAEL v. CITY OF LINCOLN

The motion to tax costs is continued to **June 4, 2026, at 8:30 a.m. in Department 3**.

6. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

The motion to compel second IME of plaintiff and motion for leave to file an amended complaint are continued to **June 4, 2026, at 8:30 a.m. in Department 3**.

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7. S-CV-0054582 ONESI, CHRISTINE v. CITY OF LINCOLN

Defendant City of Lincoln's Demurrer to Plaintiff Christine Onesi's Second Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Demurrer

Defendant demurs to the dangerous condition of public property cause of action in plaintiff's second amended complaint ("SAC") on the grounds the complaint does not allege facts sufficient to state the second cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Government Code Section 835 provides that

a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

- (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
- (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Government Code Section 830, subdivision (a) clarifies that "Dangerous condition" means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property

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is used with due care in a manner in which it is reasonably foreseeable that it will be used.”

Plaintiffs alleging a dangerous condition of public property cause of action against public entities cannot generally allege what the condition is but instead “must specify in what manner the condition constituted a dangerous condition.” (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].)

Government Code section 810, et seq. requires a plaintiff who maintains an action against a public entity to present a written claim to the public entity. The following information must be included in a notice of claim:

- (a) The name and post office address of the claimant.
 - (b) The post office address to which the person presenting the claim desires notices to be sent.
 - (c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted.
 - (d) A general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim.
 - (e) The name or names of the public employee or employees causing the injury, damage, or loss, if known.
 - (f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.
- (Gov. Code, § 910.)

The purpose of the claim is to place the public entity “in a position to investigate the facts as to the time and place and to make proper investigation of the condition of the premises and decide whether the case is one for settlement or litigation.” (*Silva v. Fresno County* (1944) 63 Cal.App.2d 253, 257–58.) Describing the location of the alleged incident is the most important aspect of the claim. (*Hall v. City of Los Angeles* (1941) 19 Cal.2d 198, 202.)

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Courts do not require perfect adherence to the claim requirements. Instead, the doctrine of substantial compliance applies. (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 38.) “The test for substantial compliance is whether the fact of the filed claim discloses sufficient information to enable the public entity to make an adequate investigation of the claim’s merits and settle it without the expense of litigation.” (*Ibid.*) However, the doctrine of substantial compliance will not “cure total omission of an essential element form the claim or remedy a plaintiff’s failure to comply meaningfully with the statute.” (*Ibid.*)

Compliance with the claim presentation requirement is an element of plaintiff’s cause of action. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236.)

Here, when taking the factual allegations in the SAC as true, plaintiff does not allege facts sufficient to state her filed claim with defendant complied or substantially complied with Government Code section 910. Specifically, the claim does not provide sufficient information about the location and circumstances surrounding the occurrence for defendant to be in a position to investigate the condition of the premises.

Defendant’s notice of insufficiency provided adequate information regarding the claim’s insufficiencies. (Gov. Code, § 910.8.) Plaintiff did not thereafter amend her claim.

Additionally, the time has lapsed for plaintiff to cure her deficient claim. (Gov. Code, §§ 910.6, 911.2, 911.4.)

Accordingly, defendant’s demurrer is sustained without leave to amend.

8. S-CV-0055904 AGOSTINI, CAROLYN v. AGOSTINI, SEBASTIEN

Hearing to Appoint Referee

On April 30, 2026, the court granted plaintiff’s motion for summary adjudication as to the second cause of action for partition by sale. The court’s ruling set a hearing for May 28, 2026, to allow the parties to meet and confer to select a mutually agreed upon referee.

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The court is required to appoint a referee to sell property. (Code Civ. Proc., § 873.010, subds. (a)–(b).) The court may not appoint as referee an ineligible person within the meaning of Code of Civil Procedure section 873.050.

The court hereby appoints Chad Phillips as the referee to sell the real property located at 1245 Pinto Court, Auburn, California, 95603, County of Placer, APN: 040-400-034-000. Chad Phillips's 1% fee of the gross sale price of the subject property shall be paid from the escrow proceeds at the close of sale. (Code Civ. Proc., § 873.010, subd. (b)(3).)

9. S-CV-0056212 JIANG, ELSA v. CREATIVE ARTS & MUSIC CENTER

Petition for Approval of Minor's Compromise Claim (Elsa Jiang)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

10. S-CV-0056302 ODER, WILLIAM v. MCGUIRE, REBECCA

The demurrer is dropped from calendar in light of plaintiff filing a full dismissal without prejudice as to the complaint with the court on May 26, 2026.

11. S-CV-0057044 IN RE THE PETITION OF TRAINER, BRIAN

Petition for Approval of Minor's Compromise Claim (Amelia Trainer)

Petitioner elects to place the settlement funds with a Bank of America branch in South Carolina. However, Form MC-350 requires the funds to be placed in a financial institution in this state. (¶18(b)(2).) Accordingly, the petition for approval of minor's compromise claim is continued to **June 25, 2026, at 8:30 a.m. in Department 3**. Petitioner, or their counsel of record, shall file a supplemental declaration on or before **June 17, 2026**, that affirms the funds will be placed in a financial institution in California or selects another option in Paragraph 18(b).

12. S-PR-0005952 JULIUS, IRENE - IN RE THE TRUST OF

The motion for assignment order is continued to **June 4, 2026, at 8:30 a.m. in Department 3**.

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13. T-CV-0002564 AMERICAN EXPRESS NAT’L v. CALVERT, RICHARD

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.

14. T-CV-0002762 SIVEL, KATHLEEN v. LAHONTAN GOLF CLUB

Defendant’s Motion to Compel Binding Arbitration

Defendant moves to compel binding arbitration pursuant to Code of Civil Procedure section 1281.2.

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; *see Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets their initial burden that an agreement to arbitrate exists between plaintiff and defendant. (Woo Dec’l, Ex. A.) As such, the burden shifts to plaintiff.

Plaintiff does not oppose the motion and thus does not meet her burden.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The matter shall be stayed pending resolution of arbitration. (Code Civ. Proc., § 1281.4.)

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Defendant shall be responsible for arbitration fees and costs. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 110.)

The court sets an order to show cause re: selection of arbitrator for June 25, 2026, at 9:00 a.m. in Department 3. The parties shall meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select a mutually agreed upon arbitrator. On or before June 11, 2026, the parties shall file a joint declaration detailing their meet and confer efforts and whether they have mutually agreed upon an arbitrator. If the parties timely file a joint declaration with a mutually agreed upon arbitrator, then the June 25, 2026, hearing shall be dropped. If the parties cannot agree on an arbitrator, then each party shall submit 3 arbitrators in their joint declaration for the court to select at the June 25, 2026, hearing. Personal appearances shall be required at the June 25, 2026, hearing.

The court additionally schedules this matter for an Order to Show Cause re: status of arbitration on Tuesday, October 20, 2026, at 9:00 a.m. in Department 32.